

26NNCV03915 26NNCV03915

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Case Number: 26NNCV03915 Hearing Date: July 10, 2026 Dept: A

MOTION FOR JUDGMENT ON THE PLEADINGS

Los

Angeles Superior Court Case # 26NNCV03915

MP: Defendants Abner Villalta, Henry Villalta, and Erwin Villalta

RP: No written opposition received

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and the tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS AND RELEVANT

BACKGROUND:

On May

18, 2026, 838-840 N. El Molino LLC ("Plaintiff") filed an Unlawful Detainer Complaint against Jatniel Villalta, Juan Villalta, Abner Villalta, Henry

Villalta, Ervin Villalta, Darlin Villalta, and Genelsis Villalta ("Defendants")

regarding the premises located at 838 N. El Molino Ave. #8, Pasadena, CA 91104. The parties entered into a written one-year lease

agreement on October 1, 2020. Plaintiff

alleges that Defendants were served with a 3-day notice to pay rent or quit on May 9, 2026, which expired on May 14, 2026.

Plaintiff seeks possession of the premises, costs and reasonable attorney's fees, past-due rent of \$37,200, forfeiture of the agreement, and damages at \$103.33 per day from June 1, 2026.

On June

24, 2026, Plaintiff dismissed the action without prejudice as to "GENELSIS VILLARTA only." (This appears to be a typographical error, as the proper defendant's name is Genelsis Villalta.)

On June

25, 2026, the default of all occupants not named in the complaint was entered.

MOTION ON CALENDAR:

On June 24, 2026, the Court held a Status Conference (Unlawful Detainer) and specially set a Motion for Judgment on the Pleadings hearing for July 10, 2026.

On July 2, 2026, Defendants Abner Villalta, Henry Villalta, and Erwin Villalta (sued as "Ervin" Villalta) filed a Motion for Judgment on the Pleadings re: Defective Three-Day Notice.

The Court is not in receipt of an opposition brief but notes that this is a UD action and will allow Plaintiff to orally oppose the motion at the hearing if Plaintiff requests oral argument pursuant to the notice procedure detailed above.

LEGAL

STANDARD:

A

defendant may move for judgment on the pleadings on the grounds that: (1) the court has no jurisdiction of the subject of the cause of action alleged in the complaint; and/or (2) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (C.C.P. § 438(c)(1)(B)(i)-(ii).) The grounds for the motion shall appear on

the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (C.C.P. § 438(d).)

MEET AND CONFER:

C.C.P. §

439(a) requires that the moving party meet and confer with the party who filed the pleading that is subject to the motion for judgment on the pleadings. However, this requirement does not apply to unlawful detainer actions or motions brought less than 30 days before trial.

(C.C.P. § 439(d)(2), (4).) As this is an unlawful detainer action and the trial is set for July 28, 2026 (less than 30 days), there is no meet and confer requirement for this motion.

ANALYSIS:

Defendants

move for judgment on the pleadings, arguing that the Three-Day Notice to Pay Rent or Quit ("Notice") is defective because: (1) the Notice fails to state the three-day notice period excludes weekends and judicial holidays pursuant to C.C.P. § 1161(2); (2) the Notice fails to specify the date on which the three—day notice was deemed served for purposes of calculating the notice period as required under C.C.P. § 1161(2); and (3) the Complaint was filed before the three-day notice period expired.

First,

the Court addresses the arguments relying on C.C.P. § 1161(2).

C.C.P. §

1161(2) states in relevant part:

2.

When the tenant continues in possession, in person or by subtenant, without the permission of the landlord, or the successor in estate of the landlord, if applicable, after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment (provided that, if the address does not allow for

personal delivery, then it shall be conclusively presumed that upon the mailing of any rent or notice to the owner by the tenant to the name and address provided, the notice or rent is deemed received by the owner on the date posted, if the tenant can show proof of mailing to the name and address provided by the owner), or the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution (provided that the institution is located within five miles of the rental property), or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon the tenant and if there is a subtenant in actual occupation of the premises, also upon the subtenant.
[...]

(C.C.P. §
1161(2).)

As stated
in *Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433:

[T]he
notice did not state when the notice period commenced or ended, nor did it inform Cepeda that the three-day period excluded weekends and judicial holidays. The notice appears to have provided the date it was signed by Eshagian but not when the notice was served, which commenced the three-day period. We observe, for example, that the notice is dated December 19, 2022, but the complaint alleged the notice was served “[o]n or about December 20, 2022.” Absent this information, an ordinary tenant would not have reasonably understood the deadline by which the tenant needed to pay the rent due to avoid forfeiture of the premises.

...

Because
the three-day notice failed to strictly comply with section 1161(2), Eshagian failed to state a cause of action for unlawful detainer, and the possession-only judgment must be reversed.

(Eshagian,
supra, 112 Cal.App.5th at 459.)

The

Notice is attached as Exhibit 2 to the Complaint. It states:

YOU

ARE HEREBY required to pay said rent in full or to remove from and deliver up possession of the premises described above within three (3) days or legal proceedings will be instituted against you to recover possession of said premises, to declare the forfeiture of the lease or rental agreement under which you occupy said premises, and to recover rents and damages together with court costs and attorney fees according to the terms of your lease or rental agreement.

(Compl., Ex. 2 [Notice].) It is "DATED" May 9, 2026 (Saturday). (Id.)

Defendants

argue that the Notice fails to state that the three-day period excludes Saturdays and Sundays and other judicial holidays, as stated in Civil Code, § 1161(2). Particularly, because the Notice was posted and mailed on May 9, 2026 (Saturday), Defendants argue that the failure to include this statutory language makes the Notice invalid, since the statutory period would not have begun until May 11, 2026 (Monday).

"Because

of the summary nature of an unlawful detainer action, a notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements. [Citation.] A judgment must be reversed when it is based on a three-day notice which lacks the information required by Code of Civil Procedure section 1161, subdivision (2)." (Foster v. Williams (2014) 229 Cal.App.4th Supp. 9, 14; Briggs v. Electronic Memories & Magnetics Corp. (1975) 53 Cal.App.3d 900, 905 ["The statutes which provide for this summary remedy are strictly construed."].) "The purpose of this notice is to give the tenant the opportunity to pay the rent and retain possession. If payment is made by the tenant within the three-day notice period, the right to possession remains in effect as if there had been no default." (Briggs, supra, 53 Cal.App.3d at 905.)

Here,

Plaintiff's Notice did not comply with the statutory language in section 1161(2) as it did not inform Defendants that the deadline calculation would exclude Saturday, Sunday, and judicial holidays. Without including this statutory language,

Defendants (and other uninformed tenants) would be forced to pay or quit during a shorter period of time than the Legislature anticipated, as section 1161 expressly excluded weekends and other judicial holidays.

Next, the

Notice does not specify the date on which the Notice was served. At most, it states the Notice was “dated” May 9, 2026, but does not state the date of service. Similar to Eshagian, the Court finds that the “DATED” date of May 9, 2026 does not adequately inform whether the Notice was merely signed that date and/or served that date for the Notice period to begin.

Second,

Defendants argue the Complaint was filed on May 18, 2026, before the notice period expired. Defendants argue that because the Notice was served by posting and mail, they had an additional five calendar days to comply with the Notice, or by May 18, 2026 (the same day the Complaint was filed).

For

service by mailing, C.C.P. § 1013(a) extends “any period or on a date certain after service of the document, which time period or date is prescribed by statute or rule of court” by five calendar days. “This extension applies in the absence of a specific exception provided for by this section or other statute or rule of court.” (C.C.P. § 1013(a).)

Defendants

argue that sections 1013 and 1162 (regarding notice and methods of service) do not contain any specific exclusion to the five-day extension rule and mailing would not result in notice on the same day it was sent. (Mot. at p.9; Baker v. Anderson (1981) 119 Cal.App.3d 1000, 1003 [“The rationale is clear; the Legislature recognized that where the service was by mail and ‘[t]he service is complete at the time of the deposit [in the course of mailing]’ there would exist, in fact, a reduction of days to act occasioned by the activities of the mail processes. It established reasonable additional days to compensate for this delayed actual notice, so that the time within which the adverse party had to act would not be diminished.”].) Defendants claim that the notice period would have expired May 13, 2026 based on the purported May 9, 2026 posting/mailing date, but extended five days for mailing, such that the Notice expired on May 18, 2026. Under California law, a three-day notice to pay rent or quit that is served via the

"post and mail" method does not extend the tenant's time to pay rent. Eshagian v. Cepeda, 112 Cal. App. 5th 433 (2025), Walters v. Meyers, 226 Cal. App. 3d Supp. 15 (1990), Losornio v. Motta, 67 Cal. App. 4th 110 (1998).

Based on Defendants' arguments and a review of the Notice attached to the Complaint, the Court finds that the Notice was defective as served because it lacked the requisite statutory language pursuant to C.C.P. § 1161(2). As such, the motion for judgment on the pleadings is granted. As this cannot be cured upon amendment and a new notice to pay rent or quit must be served to comply with statutory procedures, the motion is granted without leave to amend.

Although the motion was not brought by Jatniel Villalta, Juan Villalta nor Darlin Villalta a motion for judgment on the pleading may be brought by the Court's own motion pursuant to CCP 438(c)(1)(3). The Court takes such action as to do otherwise would create a significant inequity among the litigants and not be consistent with the goal of the Unlawful Detainer statutes.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants Abner Villalta, Henry Villalta, and Erwin Villalta's Motion for Judgment on the Pleadings came on regularly for hearing on July 10, 2026, with appearances as noted in the minute order for said hearing, and the court, being fully advised in the premises, took the matter under submission after argument and now rule as follows:

the Motion for JUDGMENT ON THE PLEADINGS IS GRANTED WITHOUT LEAVE TO AMEND AS TO

THE COMPLAINT BROUGHT AGAINST ALL DEFENDANTS.

ALL

EXISTING DATES ARE ADVANCED AND VACATED.

THE CASE IS DISMISSED WITHOUT PREJUDICE.

DEFENDANT

ABNER VILLALTA TO GIVE NOTICE.

IT IS SO

ORDERED.